

25STCV15142 25STCV15142

County: los-angeles

Division: Civil Law and Motion

Department: 516

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Case Number: 25STCV15142 Hearing Date: September 23, 2026 Dept: 516

Judge James I. Montgomery

Department 516

Hearing Date: September 23, 2026

Case Name: Navarro

v. FCA US, LLC

Case

No.: 25STCV15142

Matter: Motion to Enforce Settlement

Moving

Party: Plaintiff Jane Navarro

Responding Party: None

Tentative

Ruling: Plaintiff Jane Navarro's motion to enforce settlement is granted.

Plaintiff

Jane M. Navarro ("Plaintiff") filed this action against Defendant FCA US LLC ("Defendant") and Does 1 to 10.

On June 4,

2026, Plaintiff filed a notice of conditional settlement.

Plaintiff

moves for the Court to enforce the parties' Code of Civil Procedure 988 Offer ("Agreement"). Defendant did not file an opposition.

Legal Standard

The

Court is authorized to enter judgment pursuant to the stipulated settlement. (Code Civ. Proc., § 664.6.) In reviewing a motion to enforce a settlement, the Court determines "whether the parties entered into a valid and binding settlement." (Hines v. Lukes (2008) 167 Cal.App.4th 1174, 1182.) "A settlement is enforceable under section 664.6 only if the parties agreed to all material settlement terms. [Citations.] The court ruling on the motion may consider the parties' declarations and other evidence in deciding what terms the parties agreed to, and the court's factual findings in this regard are reviewed under the substantial evidence standard. [Citations.] If the court determines that the parties entered into an enforceable settlement, it should grant the motion and enter a formal judgment pursuant to the terms of the settlement." (Id. at pp. 1182-1183; see also Osumi v. Sutton (2007) 151 Cal.App.4th 1355, 1357 ["Strong public policy in favor of the settlement of civil cases gives the trial court, which approves the settlement, the power to enforce it"].)

Strict

compliance with the statutory requirements is necessary before a court can enforce a settlement agreement under section 664.6. (Sully-Miller Contracting Co. v. Gledson/Cashman Construction, Inc. (2002) 103 Cal.App.4th 30, 37.) "[M]utuality of obligation must exist where the exchange of promises between promisor and promisee is meant to represent the contract's consideration." (Id. at p. 36.) The party seeking to enforce a settlement "must first establish the agreement at issue was set forth 'in a writing signed by the parties' (§ 664.6) or was made orally before the court." [Citation.] (Harris v. Rudin, Richman & Appel (1999) 74 Cal.App.4th 299, 304.)

Analysis

Plaintiff

moves for the Court to grant its motion to enforce settlement against Defendant.

“Although a monetary settlement is in some ways like a private contract, a settlement is obtained as a means of resolving and terminating a lawsuit. Moreover, settlement agreements pursuant to section 664.6 or section 998 result not only in contractual agreements but also in judgments that conclusively resolve the issues between the parties.” (DeSaulles v. Community Hospital of Monterey Peninsula (2016) 62 Cal.4th 1140, 1153.)

Plaintiff contends that Defendant has breached the Agreement because Defendant did not pay Plaintiff the \$10,000 owed within 60 days. (Ter-Haroutunian Decl., ¶¶ 4-5, Ex. A.) The Court finds that the parties' Agreement is signed by Defendants and clearly defines Defendant's obligation to pay within 60 days of execution. (Id. at Ex. A.) In the absence of any opposition by Defendant, the Court finds that Plaintiff has met her burden.

Thus, the Court grants Plaintiff's motion to enforce settlement.

Conclusion

Plaintiff
Jane Navarro's motion to enforce
settlement is granted.